



Falmouth Container Terminal Act 1971

CHAPTER v

ARRANGEMENT OF SECTIONS

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ELIZABETH II



1971 CHAPTER v

An Act to empower Falmouth Container Terminal Limited to construct works; and for other purposes.
[17th February 1971]

WHEREAS Falmouth Container Terminal Limited (in this Act referred to as "the Company") is a company within the meaning of the Companies Act 1948 and is a company limited by shares: 1948 c. 38.

And whereas the Company proposes to acquire by agreement certain rights in respect of land in the river Fal and the estuary thereof and it is expedient that the Company should be authorised to construct a marine terminal thereon:

And whereas in connection with the purposes aforesaid it is expedient that the Company should be empowered to construct the works authorised by this Act, and that the other provisions of this Act be enacted:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

And whereas a plan and sections showing the situations, lines and levels of the works by this Act authorised, and the lands which may be used under the powers of this Act for the purposes thereof and a book of reference to such plan containing the names

of the owners or reputed owners, lessees or reputed lessees and of the occupiers of all such lands, have been deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the clerk of the county council of the administrative county of Cornwall, and such plan, sections and book of reference are respectively referred to in this Act as the deposited plan, sections and book of reference:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title.

1. This Act may be cited as the Falmouth Container Terminal Act 1971.

Incorporation
of Act.
1847 c. 27.

2.—(1) The provisions of the Harbours, Docks and Piers Clauses Act 1847 (except sections 6 to 13, 16 to 19, 25, 26, 28 to 33, 50, 66 to 68, 77 to 82 and 84 to 96) are so far as they are applicable for the purposes of, and are not inconsistent with or varied by this Act, hereby incorporated with and form part of this Act.

(2) In the construction of the provisions so incorporated—

- (a) the expression “the special Act” shall mean this Act, the expressions “the promoters of the undertaking” and “the undertakers” shall mean the Company and the expression “the harbour, dock or pier” shall mean the terminal and any subsidiary works connected therewith and the water area within the limits of the terminal;
- (b) the expression “prescribed limits” shall mean the limits of the terminal as defined and subject as provided in section 21 (Limits of the terminal) of this Act;
- (c) “vessel” shall have the meaning assigned to it in section 3 (Interpretation) of this Act;
- (d) section 23 shall be read and have effect as if the words “provided that no such lease be granted for a longer term than three years” were omitted;
- (e) section 52—
 - (i) shall not be construed to require the pier master, in emergency, to give particular directions in the case of every vessel in respect of which it is desired to exercise any of the powers of that section, but in pursuance of that section, for all or any of the purposes

thereof, the pier master shall be entitled, in emergency, to give general directions applicable to all vessels or to particular classes of vessels;

(ii) shall extend to empower the pier master to give directions prohibiting the mooring of vessels within the limits of the terminal;

(f) section 53 shall not be construed to require the pier master to serve a notice in writing of his directions upon the master of a vessel and such directions may be given orally or otherwise communicated to the master.

PART I
—*cont.*

3.—(1) In this Act, unless there be something in the subject or Interpretation. context repugnant to such construction—

“the authorised works” means the works authorised by section 4 (Power to construct works) of this Act;

“the commission” means the Falmouth Harbour Commission;

“the Company” means Falmouth Container Terminal Limited;

“the Docks Company” means Falmouth Docks and Engineering Company;

“enactment” means any Act, whether public, general or local, or any order made thereunder, or any provision in any Act or in any such order;

“hovercraft” has the same meaning as in section 4 of the Hovercraft Act 1968;

1968 c. 59.

“hydrofoil vessel” means a vessel, however propelled, designed to be supported on foils;

“the level of high water” means the level of mean high-water springs;

“the limits of deviation” means the limits of deviation authorised by section 7 (Power to deviate) of this Act;

“the limits of the terminal” means the limits of the terminal as defined by section 21 (Limits of the terminal) of this Act;

“the river” means the river Fal and includes any part of the estuary thereof within the limits of deviation;

“seaplane” includes a flying boat and any other aircraft designed to manoeuvre on the water but does not include a hovercraft or hydrofoil vessel;

“the terminal” means Works Nos. 1 and 2 and the reclaimed area enclosed thereby;

“the terminal undertaking” means the undertaking of the Company in connection with the terminal as from time to time authorised and completed;

PART I
—cont.

“tidal work” means so much of any work authorised by this Act as is on, under or over tidal waters or tidal lands below the level of high water;

“the tribunal” means the Lands Tribunal;

“the Trinity House” means the Corporation of Trinity House of Deptford Strond;

“vessel” means every description of vessel, however propelled or moved, and includes any thing constructed or used to carry persons or goods by water, and a seaplane on or in the water, a hovercraft and a hydrofoil vessel, and in section 23 (Powers with respect to disposal of wrecks) and section 24 (Protection of Crown interests in wrecks) of this Act, includes any aircraft.

(2) This Act shall be read as if the words “or thereabouts” were inserted after each distance or dimension mentioned in section 4 (Power to construct works) of this Act.

(3) Any reference in this Act to a work identified by the number of the work shall be construed as the work of that number authorised by the said section.

(4) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment, including this Act.

PART II**WORKS****Power to
construct
works.**

4.—(1) Subject to the provisions of this Act, the Company may construct and maintain in the river and on the bed, banks and shores thereof and in the borough of Falmouth in the county of Cornwall in the situations and lines within the limits of deviation shown on the deposited plan and according to the levels shown on the deposited sections the works hereinafter described, that is to say:—

Work No. 1 A sea wall or embankment of solid construction commencing on the high-water line at a point having a National Grid reference of 182585, 032165 extending for 1,250 feet in a north-easterly direction to a point 182890, 032380 on the National Grid and thence in a north-north-easterly direction for 1,200 feet and terminating at a point having a National Grid reference 183025, 032720.

Work No. 2 A quay or quays, including berths for vessels, extending into the estuary of the river from the southern bank of the said estuary commencing on the high-water

line at a point having a National Grid reference of 182210, 032570 and extending for 1,050 feet in a north-north-easterly direction to a point 182300, 032875 on the National Grid and thence in a north-easterly direction for 300 feet to a point 182380, 032915 and thence in an east-south-easterly direction for 2,200 feet and terminating at Work No. 1 at a point 200 feet south of the termination of Work No. 1.

PART II
—cont.

(2) The Company may fill in and reclaim from the foreshore and bed of the river and may hold and use as part of the terminal undertaking so much of the foreshore and bed of the river as is situated within the limits of deviation and is landward of the sea wall or embankment and quay or quays forming part of Works Nos. 1 and 2.

5. Subject to the provisions of this Act, the Company may from time to time for the purposes of, or in connection with, the authorised works execute, place and keep, either temporarily or permanently, within the limits of deviation on, under or over tidal waters or tidal lands below the level of high water, all such caissons, cofferdams, piles, quays, walls, abutments, embankments, booms, dolphins, access works, fenders, mooring posts, pontoons, cranes, winches, gantries, conveyors and stagings and other works as they may find necessary or expedient. Subsidiary works.

6. Subject to the provisions of this Act, the Company may from time to time maintain, renew, enlarge, alter and reconstruct temporarily or permanently the works authorised by this Act or any part thereof: Maintenance, alteration and improvement of works.

Provided that nothing in this section shall authorise the Company to deviate laterally beyond the limits of deviation.

7. In the construction of the authorised works the Company may deviate laterally to any extent within the limits of deviation shown on the deposited plan and may deviate vertically from the levels of those works shown on the deposited sections to any extent downwards and to any extent not exceeding 5 feet upwards. Power to deviate.

8. So much of the works authorised by this Act as are not within the borough of Falmouth shall for all purposes be deemed to be within that borough. Works to be within the borough of Falmouth.

9. Subject to the provisions of this Act, the Company may from time to time deepen, dredge, scour, cleanse, alter and improve the bed, shores and channels of the river adjoining or near to the terminal for the purpose of affording uninterrupted means of access thereto and for the purpose of fulfilling its obligations under section 28 (For protection of the commission Power to dredge.

PART II
—cont.

and the Docks Company) of this Act, and may use, appropriate or dispose of the materials from time to time dredged by it from the river:

Provided that no materials so dredged by it shall be deposited below the level of high water except in such places and in accordance with such restrictions or regulations as may be approved or prescribed by the Secretary of State, nor shall such materials be deposited in any place within the jurisdiction of the commission or of the Docks Company without the consent of the commission or of the Docks Company as the case may be.

Period for
completion
of works.

10. Subject to the provisions of this Act, if the authorised works are not completed within ten years from 1st October, 1970, then on the expiration of that period the powers by this Act granted to the Company for making and completing the authorised works or otherwise in relation thereto shall cease except as to so much thereof as is then substantially commenced:

Provided that nothing in this section shall prejudice the powers of the Company to maintain, renew, enlarge, alter or reconstruct within the limits of deviation the authorised works at any time and from time to time as occasion may require.

Tidal works
not to be
executed
without
approval of
Secretary of
State.

11.—(1) A tidal work shall not be constructed, renewed, enlarged, altered or reconstructed except in accordance with plans and sections approved by the Secretary of State and subject to any conditions and restrictions imposed by him before the work is begun.

(2) If a tidal work is constructed, renewed, enlarged, altered or reconstructed in contravention of this section or of any condition or restriction imposed under this section—

(a) the Secretary of State may by notice in writing require the Company at its own expense to remove the tidal work or any part thereof and restore the site thereof to its former condition; and if, on the expiration of thirty days from the date when the notice is served upon the Company, it has failed to comply with the requirements of the notice, the Secretary of State may execute the works specified in the notice; or

(b) if it appears to the Secretary of State urgently necessary so to do, he may remove the tidal work or part of it and restore the site to its former condition;

and any expenditure incurred by the Secretary of State in so doing shall be recoverable from the Company as a simple contract debt.

Provision
against
danger to
navigation.

12.—(1) In case of injury to or destruction or decay of a tidal work or any part thereof the Company shall forthwith notify the commission and the Docks Company and shall lay down such

buoys, exhibit such lights and take such other steps for preventing danger to navigation as the commission shall from time to time direct.

PART II
—cont.

(2) If the Company fails to notify the commission or the Docks Company as required by this section or to comply in any respect with a direction given under this section it shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

13.—(1) Where a tidal work is abandoned, or suffered to fall into decay, the Secretary of State may by notice in writing require the Company at its own expense either to repair and restore the work or any part thereof, or to remove the work and restore the site thereof to its former condition to such an extent and within such limits as the Secretary of State thinks proper.

Abatement
of works
abandoned or
decayed.

(2) Where a work authorised by this Act and consisting partly of a tidal work and partly of works on or over land above the level of high water is abandoned or suffered to fall into decay, and that part of the work on or over land above the level of high water is in such condition as to interfere or to cause reasonable apprehension that it may interfere with the right of navigation or other public rights over the foreshore, the Secretary of State may include that part of the work, or any portion thereof, in any notice under this section.

(3) If, on the expiration of thirty days from the date when a notice under this section is served upon the Company, it has failed to comply with the requirements of the notice the Secretary of State may execute the works specified in the notice and any expenditure incurred by him in so doing shall be recoverable from the Company as a simple contract debt.

14. The Secretary of State may at any time if he deems it expedient order a survey and examination of a tidal work constructed by the Company or of the site upon which it is proposed to construct the work, and any expenditure incurred by the Secretary of State in any such survey and examination shall be recoverable from the Company as a simple contract debt.

Survey of
tidal works.

15.—(1) The Company shall at or near a tidal work during the whole time of the construction, renewal, enlargement, alteration or reconstruction thereof exhibit every night from sunset to sunrise such lights, if any, and take such other steps for the prevention of danger to navigation as the Secretary of State shall from time to time direct.

Lights on
tidal works
during
construction.

(2) If the Company fails to comply in any respect with a direction given under this section it shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

PART II
—cont.

Permanent
lights on
tidal works.

16.—(1) After the completion of a tidal work the Company shall at the outer extremity thereof exhibit every night from sunset to sunrise such lights, if any, and take such other steps for the prevention of danger to navigation as the commission shall from time to time direct.

(2) If the Company fails to comply in any respect with a direction given under this section it shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

Company may
provide tugs,
dredgers, etc.

17.—(1) The Company may from time to time build, purchase, contract for, hire, provide, maintain and use tugs, hoppers, barges or other powered craft—

(a) as may be necessary or expedient for or in relation to any of the purposes mentioned in section 9 (Power to dredge) of this Act; and

(b) for the use and accommodation of vessels within the limits of the terminal and for this purpose it may let the same.

(2) In addition to the powers conferred by subsection (1) of this section the Company may, for the purposes referred to in paragraph (a) of that subsection, purchase, contract for, hire, provide, maintain and use all such dredging and other craft and appliances as may be necessary or expedient.

Power to sell
terminal
undertaking.

18.—(1) At any time after any of the terminal works have been completed, the Company may, with the previous consent in writing of and upon such terms, conditions and restrictions as may be approved by the Secretary of State, sell the terminal undertaking, and the purchaser, to the extent authorised by his conveyance or assignment, shall have and may exercise all or any of the powers conferred upon the Company by this Act, or which the Company has or might exercise under this Act in relation to the terminal undertaking, and shall be subject to all the restrictions, liabilities and obligations in respect of the terminal undertaking to which the Company is subject and shall perform all the duties of the Company under this Act in respect of the undertaking:

Provided that the Company shall not exercise the powers of this section unless, at least one month before making application to the Secretary of State for his consent to the sale of the terminal undertaking, it gives to the commission and to the Docks Company notice in writing of its intention so to do and of the name of the intended purchaser, and the Secretary of State before giving his consent shall take into consideration any representations in writing which may be submitted to him by the commission or by the Docks Company.

(2) The Company shall, within one month after the date of any conveyance or assignment made under this section, deposit a certified copy thereof at the Department of the Environment and shall, upon failure to do so, be liable to a fine not exceeding twenty pounds.

PART II
—cont.

19.—(1) The Company may, with the previous consent in writing of and upon such terms, conditions and restrictions and for such period as may be approved by the Secretary of State, lease to any company, corporation or person the terminal undertaking. Power to lease terminal undertaking.

(2) As from the commencement of any lease made under the last preceding subsection, the lessee, during the continuance of and to the extent provided in his lease, shall have and may exercise all or any of the powers conferred upon the Company by this Act or which the Company has or might exercise under this Act and shall be subject to all the restrictions, liabilities and obligations in respect of the terminal undertaking to which the Company is subject and shall perform all the duties of the Company under this Act in respect of such undertaking.

(3) No lease made under subsection (1) of this section shall be assignable without the previous consent in writing of the Secretary of State, and the provisions of this Act with respect to such lease or to the lessee shall apply to any such assignment or to the assignee respectively.

(4) The Company or, as the case may be, a lessee shall not exercise the powers of this section unless at least one month before making application to the Secretary of State for his consent to the leasing of the terminal undertaking or, as the case may be, to an assignment of a lease of the terminal undertaking, it or he gives to the commission and to the Docks Company notice in writing of the intention so to do and of the name of the intended lessee or assignee, as the case may be, and of the terms, conditions and restrictions of any proposed lease, and the Secretary of State before giving his consent shall take into consideration any representations in writing which may be submitted to him by the commission or by the Docks Company.

(5) The Company shall, within one month after the date of any lease made under this section, deposit a certified copy thereof at the Department of the Environment and shall, upon failure to do so, be liable to a fine not exceeding twenty pounds.

(6) In this section the expression “lease” includes “sub-lease” and the expression “lessee” includes “sub-lessee”.

20. A person employed by the Department of the Environment or the Department of Trade and Industry and a customs officer shall have free access to the terminal while in the execution of his duty. Access for government officers.

PART III

MISCELLANEOUS

Limits of the terminal.

21. The limits within which the Company shall exercise jurisdiction as a pier authority, and within which the powers of the pier master may be exercised, shall extend over the area of water within a distance of 300 feet from the structures of Works Nos. 1 and 2:

Provided that—

- (1) the jurisdiction of the pier master conferred by this Act shall only be exercised with reference to vessels using the said works or coming to or departing therefrom and vessels within the said area which shall obstruct the approaches to those works; and
- (2) if at any time there is conflict between any directions given by the pier master and any directions lawfully given by the harbourmaster of the commission the directions given by the harbourmaster of the commission shall prevail.

Compounding arrangements and rebates.
1964 c. 40.

22. Nothing in section 30 of the Harbours Act 1964 shall require the Company to include in the list of ship passenger and goods dues kept at the harbour office, as required by subsection (1) of that section, dues reduced by virtue of a compounding arrangement in respect of or rebate on a due included in the said list.

Powers with respect to disposal of wrecks.
1894 c. 60.

23.—(1) In their application to the Company, sections 530 and 532 of the Merchant Shipping Act 1894 (which confer powers on the Company with respect to, and with respect to anything in or on, any vessel sunk, stranded or abandoned in such manner as to be an obstruction or danger to navigation at the terminal or in or near any approach thereto), shall have effect—

- (a) subject to the provisions of section 24 (Protection of Crown interests in wrecks) of this Act; and
- (b) in relation to a vessel sunk, stranded or abandoned before as well as after the passing of this Act.

(2) Subject to subsection (3) of this section, and to any enactment for the time being in force limiting his liability, the Company may recover as a simple contract debt from the owner of any vessel in relation to which it has exercised its powers under the said section 530 or the said section 532 any expenses reasonably incurred by it under those sections in relation to that vessel which are not reimbursed out of the proceeds of sale, if any, within the meaning of those sections.

(3) Except in a case which is in the opinion of the Company a case of emergency, subsection (2) of this section shall not apply in relation to any vessel unless, before exercising in relation to that vessel any of the powers conferred on it by the said

section 530 other than the power of lighting and buoying, the Company has given to the owner of the vessel not less than forty-eight hours' notice of its intention to do so; and if before the notice expires the Company receives from the owner counter-notice in writing that he desires to dispose of the vessel himself, and no direction is served in respect of the vessel under paragraph (b) of subsection (2) of the said section 24, he shall be at liberty to do so, and the Company shall not exercise the powers aforesaid in relation to that vessel until the expiration of seven days from the receipt of the counter-notice and of any further continuous period thereafter during which the owner of the vessel proceeds with the disposal thereof with all reasonable diligence and in compliance with any directions for the prevention of interference with navigation which may be given to him by the Company.

PART III
—cont.

(4) Notice under subsection (3) of this section to the owner of any vessel may be served by the Company either by delivering it to him or by sending it to him by registered post or the recorded delivery service addressed to him at his last known place of business or abode in the United Kingdom or, if the owner of any such place of business or abode is not known to the Company or is not in the United Kingdom, by displaying the notice at the office of the principal officer of the Company at or nearest to the terminal for the period of its duration.

(5) In this section the expression "owner" in relation to any vessel means the person who was the owner of the vessel at the time of the sinking, stranding or abandonment thereof.

24.—(1) Without prejudice to section 741 of the Merchant Shipping Act 1894 (which relates to the exemption from the provisions of that Act of vessels belonging to Her Majesty), as modified by any Order in Council made under section 80 of the Merchant Shipping Act 1906, the powers conferred on the Company by sections 530 and 532 of the said Act of 1894 shall not be exercisable—

Protection
of Crown
interests in
wrecks.
1894 c. 60.
1906 c. 48.

(a) in relation to any vessel sunk, stranded or abandoned by design by or under the orders of a person acting on behalf of Her Majesty or an officer or servant of the Crown acting in the course of his duty as such;

(b) except with the consent of the Secretary of State for Defence, which may be given with or without such a direction as is referred to in paragraph (b) of subsection (2) of this section in relation to any vessel which is not excluded from the exercise of those powers by virtue of being a vessel belonging to Her Majesty but which, at the time when the vessel was sunk, stranded or abandoned—

(i) had been required to be placed at the disposal of Her Majesty or of a government department; and

PART III
—cont.

(ii) was appropriated to the service, under the direction and control of the Secretary of State, of Her Majesty's ships of war.

(2) The Company shall give notice in writing to the Secretary of State for Defence and to the Secretary of State for Trade and Industry of any decision of the Company to exercise in relation to any vessel referred to in paragraph (b) of subsection (1) of this section any of the powers aforesaid other than the power of lighting and buoying and, except in a case which is in the opinion of the Company a case of emergency, shall not proceed with the exercise thereof—

- (a) except with the consent of the Secretary of State for Defence and the Secretary of State for Trade and Industry, before the expiration of a period of fourteen days from the giving of the notice; or
- (b) if before the expiration of the said period there is served on the Company a direction by the Secretary of State for Defence or the Secretary of State for Trade and Industry that those powers shall not be exercised in relation to that vessel except in such a case as aforesaid;

and where, in any such case as aforesaid, the Company proceeds to exercise those powers without the consent and before the expiration of the period mentioned in paragraph (a) of this subsection or after a direction has been served on it as aforesaid, it shall not in the exercise of those powers use any explosives and if, before the expiration of the period aforesaid, such a direction as aforesaid is served on it, shall not be entitled to exercise the power of sale conferred by the said section 530 or the power conferred by subsection (2) of section 23 (Powers with respect to disposal of wrecks) of this Act:

Provided that—

- (i) the Company shall not be required to give notice under this subsection in respect of any vessel in respect of which it has received a consent under paragraph (b) of subsection (1) of this section, but any direction such as is referred to in paragraph (b) of this subsection accompanying that consent shall be deemed for the purposes of this subsection and of subsection (3) of the said section 23 to have been duly served under paragraph (b) of this subsection;
- (ii) the prohibition on the use of explosives imposed by this subsection shall not apply to the use for cutting away the superstructure of a vessel of such small explosive charges as may for the time being be approved by the Secretary of State for Trade and Industry for the purposes of this proviso.

(3) Without prejudice to the power of sale conferred on the Company by the said section 530, the Company shall hold and dispose of any wreck within the meaning of Part IX of the said Act of 1894, raised, removed or recovered under that section and any surplus proceeds of sale within the meaning of that section in accordance with such directions, if any, as may be given to it by the receiver of wrecks; and on exercising the said power of sale in the case of any property the Company shall discharge any sums payable in respect of that property by way of duties of customs or excise, purchase tax or surcharge in respect of sugar or molasses, and any sums so discharged shall be deemed to be expenses incurred by the Company under that section.

PART III
—cont.

(4) Any limitation on the powers of the Company in relation to any vessel arising by virtue of subsection (1) or subsection (2) of this section shall not operate to authorise the exercise in relation to that vessel of the powers conferred on Trinity House by section 531 of the said Act of 1894.

25. In addition to the byelaws which may be made by the Company under section 83 of the Harbours, Docks and Piers Clauses Act 1847, the Company may make such byelaws as it thinks fit for all or any of the following purposes, that is to say:—

Power to
Company to
make byelaws.
1847 c. 27.

the management, control and regulation of the terminal and of goods, wares, merchandise and vehicles using or passing over or frequenting or resorting to the terminal;
the control and regulation of vessels being within the limits of the terminal;

the conduct of persons using or being on the terminal and the control or prohibition of smoking by such persons;
safety precautions to be observed by persons on vessels being within the limits of the terminal or persons using or being on the terminal.

26.—(1) All byelaws made by the Company shall be subject to the provisions contained in subsections (2) to (7) of section 250 and in sections 251 and 252 of the Local Government Act 1933, and all fines imposed for the breach of any such byelaws shall be recoverable in manner provided by that Act for the recovery of fines and those sections shall for the purposes of this section be construed as if the words “the Company” were inserted instead of the words “the authority” wherever they occur and as if the reference to “the clerk of the authority” included a reference to the secretary of the Company.

Application
of Local
Government
Act 1933 to
byelaws.
1933 c. 51.

(2) The confirming authority for the purposes of the said section 250 shall be the Secretary of State.

Inquiries by
Secretary of
State for the
Environment
and
Secretary of
State for Trade
and Industry.

27. The Secretary of State for the Environment and the Secretary of State for Trade and Industry may each cause to be held such inquiries as they may consider necessary in regard

PART III
—cont.

1933 c. 51.

to the exercise of any powers or duties conferred or imposed upon them and the giving of any consent or approval or the making of any order or the confirmation of any byelaw under this Act, and section 290 of the Local Government Act 1933 shall apply to any such inquiry as if it were an inquiry held in pursuance of subsection (1) of that section and the Company were a local authority.

For protection
of the
commission
and the Docks
Company.

28. For the joint and several protection of the commission and the Docks Company, the following provisions shall, unless otherwise agreed in writing between the Company, the commission and the Docks Company, apply and have effect:—

- (1) In this section unless the context otherwise requires “dredge” means deepen, dredge, scour, cleanse, alter or improve the foreshore or bed of the river and “works” includes the works authorised by section 4 (Power to construct works), section 5 (Subsidiary works) and section 6 (Maintenance, alteration and improvement of works) of this Act:
- (2) Before commencing the construction of any part of the works which will be situate on the foreshore or bed of the river, plans and sections showing the general mode of construction thereof shall be delivered by the Company to the commission and to the Docks Company for their reasonable approval, and such works shall not be constructed otherwise than in accordance with such plans and sections as may be approved by the commission and by the Docks Company, or as may be settled by arbitration; and all such works shall be executed to the reasonable satisfaction of the engineer of the commission and of the engineer of the Docks Company:
- (3) All temporary structures in the river which may be necessary to enable the terminal to be constructed shall be constructed to the reasonable satisfaction in all respects of the engineer of the commission and of the engineer of the Docks Company in accordance with plans and sections to be previously submitted to and approved by the commission and by the Docks Company or settled by arbitration and so as not to interfere more than may be necessary with the navigation of, or the traffic on, the river, and after the purpose for which such temporary structures were constructed has been accomplished the Company shall, with all reasonable dispatch and in any event within fourteen days after the service of notice in writing from either the commission or the Docks Company requiring it so to do, remove any such temporary structures or any materials for the same which

may have been placed in the river by the Company, and on its failing so to do the commission or the Docks Company may remove the same, charging the Company with the reasonable expense of so doing, and the Company shall repay to the commission or to the Docks Company, as the case may be, all such expense:

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—cont.

- (4) The Company shall, before commencing any dredging in the river under the powers of this Act (other than maintenance dredging), deliver to the commission and to the Docks Company for their reasonable approval plans and sections defining the nature, extent and manner of such dredging and such dredging shall not be carried out otherwise than in accordance with such plans and sections and in such manner as may be approved by the commission and the Docks Company or as may be settled by arbitration.

For the purposes of this paragraph the expression “maintenance dredging” means dredging within such area and to such extent as are defined on plans and sections approved by the commission and by the Docks Company pursuant to this paragraph for the purpose of or in connection with the construction or maintenance of the terminal:

- (5) In the event of the commission or the Docks Company omitting to express their disapproval of any plans or sections within two months after the same have been delivered to them in pursuance of this section, they shall be deemed to have approved the same:
- (6) (a) If by reason or in consequence of the construction, or use of any of the works, within a period of five years after the completion of the construction thereof, the effective width of the navigable channel leading to the docks and works of the Docks Company as it exists at the commencement of this Act is reduced so as to impede navigation the Company shall at its own expense widen the existing navigable channel on its northern side so as to provide a navigable channel of not less width and depth below ordnance datum (Newlyn) than exists at the commencement of this Act;
- (b) If the Company at any time fails to comply with the requirements of this paragraph then the commission or the Docks Company may effect the widening of the channel and any expenditure reasonably incurred by them in so doing shall be recoverable from the Company as a simple contract debt:
- (7) If the commission or the Docks Company prove that by reason or in consequence of the construction of any of

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—cont—

the works any accumulation of silt or other material has been created in the river which causes an impediment to the free navigation of the river the Company shall, at its own expense, carry out such dredging as the commission or the Docks Company may reasonably require for the removal of such accumulation of silt or other material and if it refuses or fails to do so the commission or the Docks Company may themselves carry out such dredging and may recover from the Company the reasonable cost thereof:

Provided that nothing in this paragraph shall require the Company to dredge to a greater depth than exists at the commencement of this Act:

- (8) From and after the commencement of the construction of the works the Company shall afford to the commission and to the Docks Company all such reasonable facilities as they may request to place and maintain at their expense on the works any signals or other apparatus for the safety or benefit of navigation:
- (9) During the continuance of any dredging operations which the Company is authorised or required to execute in the course of the construction of the terminal, the Company shall, if required by the commission provide and maintain to their reasonable satisfaction such lighted mooring or other buoys at any deposit ground in the river which may be approved for the deposit of dredging from the site of the works, and take all such other steps as may be necessary to prevent danger to navigation:
- (10) The provisions of section 13 (Abatement of works abandoned or decayed) and section 14 (Survey of tidal works) of this Act shall, with the necessary modifications, apply to the commission and to the Docks Company as if the commission and the Docks Company were named therein in addition to the Secretary of State and any expenses incurred by the commission or by the Docks Company in pursuance of the said sections shall be a debt due to them from the Company and may be recoverable summarily as a civil debt where the amount recoverable does not exceed twenty pounds, or in any civil court:

Provided that in the event of any inconsistency between any requirement or order of the Secretary of State and of the commission or of the Docks Company the Company shall be deemed to have complied with the provisions of those sections if it has complied with the requirement or order of the Secretary of State:

- (11) Subject to the requirements of the Commissioners of Customs and Excise and other security requirements the Company shall allow at all reasonable times access both by water and by land to the commission, and to the Docks Company their respective officers and servants on, to and over any part of the works, both during and after the construction thereof, without payment or hindrance whilst in the execution of their duties:
- (12) If there shall be any inconsistency between any plans or sections approved by the commission and by the Docks Company or settled by arbitration under this section and the plans and sections approved by the Secretary of State under section 11 (Tidal works not to be executed without approval of Secretary of State) of this Act, the works shall be executed in accordance with the plans and sections so approved by the Secretary of State:
- (13) Any difference arising between the Company, the commission or the Docks Company under this section (other than a difference as to the construction of this section) shall be settled by arbitration.

29. For the protection of the mayor, aldermen and burgesses of the borough of Falmouth (in this section referred to as “the corporation”) the following provisions shall, unless otherwise agreed in writing between the Company and the corporation, apply and have effect:—

(1) In this section—

“the sewer” means the outfall sewer of the corporation which discharges into the sea at Middle Point in the borough of Falmouth;

“untreated sewage” includes comminuted sewage:

- (2) If at any time during or after the construction of the terminal the free flow of untreated sewage or other untreated effluent from the sewer is impeded or obstructed or the action of the tide in carrying away such sewage or other effluent is rendered less effective than it was at the date of the passing of this Act and it is agreed between the corporation and the Company or, in default of agreement, determined by arbitration that such impediment or obstruction or such effect upon the action of the tide is wholly or partly attributable to the construction or existence of the terminal the Company shall as soon as is reasonably practicable following the receipt of notice in writing from the corporation in this behalf and to the reasonable satisfaction of the

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—cont.

corporation execute such works or take such steps as may be reasonably necessary to overcome the deleterious effect of such impediment or obstruction, or to ensure so far as is reasonably practicable that the untreated sewage or other untreated effluent is carried away by the tide as effectually and acceptably as at the date of the passing of this Act, whether by means of an alteration, diversion or extension of the sewer or otherwise:

- (3) The expenses incurred by the Company in executing such works or taking such steps as are referred to in paragraph (2) of this section shall—

(a) if the impediment or obstruction or effect upon the action of the tide is wholly attributable to the construction or existence of the terminal be borne by the Company; and

(b) in any other case shall be apportioned between the Company and the corporation in such proportions as may be agreed between them or, in default of agreement, determined by arbitration:

- (4) (a) The corporation may, if they so desire, themselves execute such works or take such steps as are referred to in paragraph (2) of this section, and in that event the Company shall repay to the corporation the reasonable costs and expenses incurred by them in so doing or, in any such case as is referred to in sub-paragraph (b) of paragraph (3) of this section, such proportion thereof as may be agreed between the Company and the corporation or, in default of agreement, determined by arbitration;

- (b) The corporation shall before executing such works or taking such steps as are referred to in paragraph (2) of this section give notice to the Company of the works proposed to be executed or the steps proposed to be taken, and shall afford to the Company all reasonable facilities for inspection in connection therewith:

- (5) The Company shall effectively indemnify and hold harmless the corporation from and against all claims and demands relating to the discharge of sewage from the sewer arising out of, or in connection with, the construction of the terminal or any act or omission of the Company or of any person in their employ or of their contractors and the fact that any work or thing may have been done by the corporation on behalf of the Company in accordance with any requirement of the corporation shall not (if it was done without neglect or

default on the part of the corporation or of any person in their employ or of their contractors or agents) excuse the Company from any liability under the provisions of this section:

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Provided that the corporation shall give to the Company reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Company:

- (6) Any difference which may arise between the corporation and the Company under this section shall be referred to and determined by arbitration.

30.—(1) The byelaws made from time to time by the commission under section 34 of the Explosives Act 1875 and under section 7 of the Petroleum (Consolidation) Act 1928 shall extend and apply and may be enforced within the limits of the terminal and the Company shall be under no duty to make byelaws under the said section 7 notwithstanding anything contained therein.

Byelaws.
1875 c. 17.
1928 c. 32.

(2) The byelaws made from time to time by the commission shall, except so far as the byelaws may otherwise expressly provide, extend and apply and except as aforesaid may be enforced within the limits of the terminal.

(3) Any byelaws made by the Docks Company shall not apply to the terminal.

31. Except in so far as may be agreed between the Company and the government department or person concerned or as may be specifically laid down by statute, nothing in any enactment authorising the Company to make charges shall extend to authorise the Company to make a charge on—

Exemption
from charges
for Crown, etc.

(a) a vessel—

(i) belonging to or in the service of Her Majesty or any member of the Royal Family; or

(ii) in the service of the Commissioners of Customs and Excise and not carrying goods for reward; or

(iii) employed by or under the authority of the Secretary of State for Defence, not being a vessel also conveying passengers or goods for reward; or

(b) the Commissioners of Customs and Excise in respect of a vessel or goods under customs seizure;

(c) troops landed at the port premises or a person employed by the Secretary of State for Defence while in the execution of his duty;

(d) goods belonging to the Secretary of State for Defence.

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—cont.

Crown rights.

32. Nothing in this Act shall affect prejudicially any estate, right, power, privilege or exemption of the Crown and, in particular and without prejudice to the generality of the foregoing, nothing herein contained shall authorise the Company to take, use or in any manner interfere with any portion of the shore or bed of the sea or of any river, channel, creek, bay or estuary or any land, hereditaments, subjects or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose.

Saving rights
of Duchy of
Cornwall.

1863 c. 49.

33. In particular and without prejudice to the general law concerning the applicability of statutes to the Duchy of Cornwall, nothing contained in this Act shall extend to authorise the Company to take, enter upon or interfere with any land (including land covered with water) or water or take away or affect any rights, powers, privileges or authorities belonging to or enjoyed by Her Majesty in right of the Duchy of Cornwall or to or by the Duke of Cornwall for the time being without the consent in writing of some two or more of such of the regular officers of the said Duchy or of such other persons as may be duly authorised under section 39 of the Duchy of Cornwall Management Act 1863 to exercise all or any of the said rights, powers, privileges and authorities by the said Act made exercisable or otherwise for the time being exercisable in relation to the said Duchy or, as the case may be, the consent of the said Duke testified in writing under the seal of the Duchy of Cornwall first had and obtained.

Saving for
Trinity House.

34. Nothing in this Act shall prejudice or derogate from any of the rights or privileges, or the jurisdiction or authority, of Trinity House.

Saving for
Harbours
Act 1964.
1964 c. 40.

35. Nothing in this Act shall exempt the Company from the provisions of sections 9 and 10 of the Harbours Act 1964 in relation to the works authorised by this Act.

Saving for
town and
country
planning.
1962 c. 38.

36. Section 220 of the Town and Country Planning Act 1962 (which for the avoidance of doubt declares that the provisions of that Act and any restrictions or powers thereby imposed or conferred in relation to land apply to land notwithstanding that provision is made by any local Act passed before or during the Session of the 10 & 11 Geo. 6 for authorisation or regulation of development of the land) shall apply to this Act as if it had been passed during that Session; and accordingly the Town and Country Planning Acts 1962 to 1968 and orders, regulations, rules, schemes and directions made or given thereunder shall apply to development authorised by this Act.

37. Where under this Act any question or dispute is to be referred to or determined by an arbitrator or arbitration then, unless other provision is made, the reference shall be to a single arbitrator to be agreed upon between the parties or, failing agreement, appointed by the President of the Institution of Civil Engineers on the application of any party to the dispute (after notice in writing to the others of them).

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Arbitration.

38. The costs, charges and expenses preliminary to, and of and incidental to, the applying for and the preparing, obtaining and passing of this Act shall be paid by the Company.

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